STATEMENT OF WITNESS UNDER SECTION 161 Cr.P.C. / SECTION 180 BNSS, 2023
POLICE STATION: EOW, Mandir Marg, New Delhi | FIR NO: 0412/2024
DATE OF EXAMINATION: 18/08/2024 | INVESTIGATING OFFICER: SI Devendra Chawla
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WITNESS IDENTIFICATION:
Name: Ramesh Gupta, S/o Late K. L. Gupta, Age: 44 Years
Designation: Chief Financial Officer, Apex FinTech Innovations Ltd., Gurugram.

WITNESS TESTIMONY:
I am the Chief Financial Officer of Apex FinTech Innovations Ltd. since January 2021.
I was personally involved in negotiating the financial terms of the Master Agreement dated 15/01/2024.
On 04/02/2024, Accused No. 2 Sameer Verma emailed the CertiGuard escrow receipt to my corporate email address.
I verified the email attachment and authorized the RTGS payment of INR 4,25,00,000/- on 05/02/2024.

CONCERNING THE INCIDENT OF 10/08/2024 (CROSS-EXAMINATION / CONTRADICTION POINT):
On 10/08/2024, at approximately 11:30 AM, I accompanied MD Vikramaditya Singhania to Zenith's Okhla office.
Accused Rajesh Malhotra was present in the boardroom along with two private security guards.
When our MD demanded immediate access to the GitHub enterprise escrow keys, Rajesh Malhotra shouted at us.
However, contrary to what was later stated in the FIR, there was NO physical violence or assault whatsoever.
Rajesh Malhotra merely slammed the desk, hurled verbal abuses, and asked us to resolve the dispute in arbitration.
Neither I nor Mr. Singhania suffered any bodily blows, fractures, or physical injury during this entire meeting.
We left the Okhla premises peacefully at 12:15 PM and drove back to our Gurugram corporate headquarters.

CONCERNING PRE-DISBURSEMENT DUE DILIGENCE & SOFTWARE INTEGRATION:
I state that our technical team led by Mr. Singhania had already inspected the beta software build in January 2024.
The software architecture was working properly in the staging environment before any funds were released.
The dispute arose primarily because Zenith demanded an additional INR 1.5 Crores for cloud GPU server costs.
Statement recorded verbatim without fear, favor, or coercion.
Sd/- Ramesh Gupta (Witness / CFO).